

SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST
VIRGINIA

Proceeding: Asterglen corporate deposition.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt
Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Asterglen Rule 30(b)(6) Deposition Excerpts

Deposition taken September 12, 2025. Filed November 3, 2025 as District ECF No. 43-5, an
attachment to Copper Kestrel's memorandum at District ECF No. 43.

The witness appeared as Asterglen's designated corporate representative on contract formation,
license administration, the proposed terminal expansion, communications from June 3 through
July 25, the July 18 audit, the July 22 termination and demand, and the calculation of claimed
damages. The witness reviewed Asterglen's contract file, account notes, compliance materials,
access data, and finance summaries in preparation.

COUNSEL FOR COPPER KESTREL: The questions concern Asterglen's knowledge as an
organization. Please identify when an answer is based on records rather than personal
participation.

THE WITNESS: I will. My answers state Asterglen's position after reviewing the sources
identified in our preparation sessions.

COUNSEL FOR MERIDIAN: We join questions about communications attributed to Meridian
but reserve objections to characterization.

The parties stipulated that objections other than form, privilege, and responsiveness would be
preserved. The witness affirmed that the testimony would be truthful and understood the duty to
correct the transcript if necessary.

Examination — agreement and terminal schedule

Q. When was the Pilot License signed?

A. April 15, 2024.

Q. How many terminals did its executed schedule identify?

A. Twelve. The schedule named each licensed location. Asterglen's position is that another location required a signed amendment or change order.

Q. What did Section 9.2 require?

A. Written notice describing a claimed material breach and fifteen calendar days to cure before a party terminated for that breach or sought breach damages. That is the corporate understanding reflected in the executed license.

Q. Did the agreement make cure optional whenever a party thought the breach serious?

A. The text did not contain that exception. Asterglen later took the position that cure would have been futile, but the contract itself states the notice and cure sequence.

Q. Was a change order proposed on June 3?

A. Yes. Copper Kestrel proposed adding twenty-nine terminals, which would have produced forty-one in total.

Q. Did Asterglen sign it?

A. No. The document remained under commercial review.

Q. Is the absence of a signature the only fact on which Asterglen relies?

A. No. Asterglen also relies on the June 10 written conditions, its account records, the July 18 audit, and its witnesses' understanding of the July 8 call.

Examination — June 10 conditions

Q. What did Asterglen communicate on June 10?

A. Asterglen allowed a controlled load test while the proposed change order was evaluated. The writing required monitoring, limited use, and no assumption that the additional locations had become licensed production terminals.

Q. Did it identify a hard end date for every test activity?

A. It tied activity to the stated testing purpose and ongoing review rather than using one calendar expiration. Asterglen expected the commercial team to resolve the proposal promptly.

Q. Could a reader understand that the technical team was allowed to create identifiers?

A. Yes, for the controlled test. Asterglen distinguishes creating an identifier from authorizing ordinary production deployment.

Q. By July 1, how many identifiers existed?

A. Forty-one, consisting of the twelve licensed terminals and twenty-nine additional identifiers.

Q. Did Asterglen's systems permit that provisioning to occur?

A. The platform accepted the administrative requests. Technical capability was not the same as contractual approval. The compliance group did not treat a successful provisioning command as an amendment.

Q. Was Meridian performing work under a June 14 statement of work?

A. Yes, for Copper Kestrel. Asterglen was not a signatory to that statement of work.

Q. Did Asterglen tell Meridian that its statement of work amended the Pilot License?

A. No. Our records contain no such statement.

Examination — disputed July 8 call

Q. Did Asterglen's project manager participate in a July 8 videoconference?

A. Yes.

Q. Copper Kestrel says the manager stated, "Continue while we finish the paperwork." Is that Asterglen's testimony?

A. No. Asterglen's representative recalls discussing continuation of the existing controlled test under the June 10 conditions. The representative denies approving production use at twenty-nine additional terminals or waiving a signed change order.

Q. Is there a recording?

A. None has been located.

Q. Are there notes?

A. Yes. Different participants wrote short notes. Some use "continue current test" and "paperwork open." Those phrases do not resolve what type of activity was authorized.

Q. Did the manager have authority to sign a commercial amendment?

A. No. Contract amendments required an authorized commercial signatory. The manager could coordinate technical testing within an existing authorization.

Q. Could the manager provide temporary operational direction?

A. Technical direction, yes, but Asterglen disputes that the manager directed expanded production.

Q. So there is a factual disagreement about the words and their scope?

A. Correct. Asterglen does not ask that Copper Kestrel's recollection be treated as ours. We identify it as contested testimony.

Q. Did any July 8 statement eliminate Section 9.2?

A. No written amendment or waiver did so.

Examination — compliance audit

Q. When did Asterglen perform the relevant audit?

A. July 18, 2024.

Q. What did it find?

A. The audit identified forty-one provisioned terminal identifiers and activity associated with the twenty-nine additions. The compliance team concluded that the configuration required immediate review against the twelve-terminal schedule and the June 10 test conditions.

Q. Did the audit itself determine that every additional terminal carried production traffic?

A. It reported activity patterns and status fields. Characterizing each event required further analysis. The corporate decision was that the configuration, taken as a whole, exceeded what compliance understood to be authorized.

Q. Did Asterglen ask Copper Kestrel for an explanation on July 18?

A. Internal personnel collected information and discussed the audit. There was no written Section 9.2 breach notice issued that day.

Q. Did the audit prescribe a cure step?

A. No. It was an internal compliance document, not a contractual notice.

Q. Did it assess whether the configuration could return to twelve terminals?

A. It observed that identifiers could be disabled, but it did not complete a detailed time estimate before the July 22 decision.

Q. Are you aware that Copper Kestrel later estimated three business days?

A. Yes. Asterglen disputes some assumptions in that estimate but has no evidence that a fifteen-day opportunity was actually offered.

Examination — July 22 decision

Q. What did Asterglen send on July 22?

A. A communication stating that the expanded deployment constituted a material breach, disabling a shared staging credential, declaring termination, and demanding \$480,000 in contract damages.

Q. How many days did it give Copper Kestrel to cure before those actions?

A. Zero.

Q. Did it say, “Reduce to twelve terminals within fifteen calendar days”?

A. No.

Q. Did it offer to restore access if Copper Kestrel completed a specified cure?

A. No. The communication treated the breach as complete and demanded immediate relief.

Q. Who decided to proceed without a cure period?

A. Asterglen's commercial and compliance leadership made the organizational decision after reviewing the audit. I am not identifying privileged legal advice.

Q. What was the business rationale?

A. They viewed the deployment as deliberate and believed prior discussions showed Copper Kestrel would contest any breach. They considered notice futile.

Q. Where does Section 9.2 state a futility exception?

A. It does not state one in the text.

Q. Did Copper Kestrel ever receive fifteen days after a written breach notice before the demand?

A. No. Asterglen's position is that the circumstances excused that sequence; Copper Kestrel disputes the position.

Examination — cure feasibility and later work

Q. Could the twenty-nine additional identifiers have been disabled without deleting the twelve licensed terminals?

A. Technically, identifiers could be disabled selectively. The process required checking active sessions and dependencies to avoid corrupting shipment data.

Q. Have you reviewed the three-business-day test results?

A. Yes. The testing consultant reported that a test configuration could be reduced to the original twelve within three business days. Asterglen questions whether the test replicated every live dependency but does not contend the result was fabricated.

Q. Is three business days shorter than fifteen calendar days?

A. Under ordinary timing, yes.

Q. Did Asterglen test cure before terminating?

A. No formal cure test occurred before July 22.

Q. Did Meridian continue activity through July 25?

A. Logs and communications show Meridian personnel remained involved through July 25. The parties disagree whether those tasks were continued unauthorized deployment or mitigation and controlled reduction after access was disabled.

Q. Did Asterglen send a new notice on July 25 offering the remaining twelve days?

A. No.

Q. Could a factfinder consider the three-day evidence in assessing futility?

A. It is evidence relevant to whether reduction was possible. Asterglen would also point to the parties' disputes and operational risk, but I understand the question.

Examination — claimed contract damages

Q. Explain the \$480,000 demand.

A. Asterglen calculated \$348,000 in claimed license and contract value associated with the expanded use and \$132,000 in response, containment, and forensic-review costs. The July 22 communication demanded the combined amount.

Q. Had a court entered judgment for that amount?

A. No.

Q. Had Copper Kestrel been given a contractual cure period before Asterglen incurred every response cost?

A. No cure period was offered before termination and demand. Some investigation costs arose from the July 18 audit and July 22 response.

Q. Does Asterglen claim the entire \$480,000 against Meridian too?

A. No. Count II seeks \$360,000 from Meridian for alleged interference, with avoidance of duplicative recovery. The theories share some alleged injury but are not pleaded as two cumulative awards for the same dollar.

Q. What is Copper Kestrel's counterclaim amount?

A. \$120,000.

Q. Could that amount create a potential offset if both sides recovered?

A. Potentially, subject to liability and proof. Asterglen denies the counterclaim.

Q. Do all three monetary claims arise from unrelated events?

A. No. Each materially involves the same license, July communications, system configuration, and disablement, though the elements and parties differ.

Examination — claim boundaries

Q. What is Count I?

A. Asterglen's contract claim against Copper Kestrel seeking \$480,000.

Q. What is Count II?

A. Asterglen's interference claim against Meridian seeking \$360,000.

Q. What remains in Copper Kestrel's counterclaim?

A. Its claim for \$120,000 arising from the immediate service disablement and alleged failure to follow Section 9.2.

Q. Does Count II rely on the July 8 call?

A. Asterglen contends Meridian knew the change order was unsigned and encouraged continued activity. Testimony about the July 8 call and Meridian's understanding bears on that contention.

Q. Does the counterclaim rely on the cure clause?

A. Yes. Copper Kestrel alleges that Asterglen disabled service without the required notice and opportunity.

Q. Would deciding Count I necessarily decide Count II?

A. Not every element. Count II requires proof concerning Meridian's conduct and intent. But evidence overlaps.

Q. Would deciding Count I necessarily decide the counterclaim?

A. Not completely. The counterclaim has its own causation and damages questions. The interpretation and application of Section 9.2, however, appears in both.

Q. Is Asterglen asking this witness to decide legal finality?

A. No. I am describing the organizational facts and asserted claim relationships.

Examination — motion evidence and corrections

Q. Has Asterglen reviewed the exhibits attached to Copper Kestrel's summary-judgment memorandum?

A. Yes. They include the provisioning ledger, July 8 notes and messages, July 18 audit, July 22 through July 25 chain, and these deposition excerpts.

Q. Is this transcript excerpt attached to that memorandum?

A. It was filed on November 3, 2025 as District ECF No. 43-5, attached to District ECF No. 43.

Q. Does attachment imply Asterglen agrees with Copper Kestrel's characterizations?

A. No. The testimony supplies Asterglen's own positions and admissions, including that there was no signed change order, no written Section 9.2 notice, no cure interval, and a disputed July 8 account.

Q. Are any corrections needed to the figures?

A. The original schedule contains twelve terminals; the proposal contains twenty-nine additions; the total provisioned identifiers was forty-one; the demand was \$480,000; and Copper Kestrel claims \$120,000. Those figures are correct as stated.

Q. Are any corrections needed to the dates?

A. The license was April 15, the proposal June 3, written conditions June 10, Meridian statement of work June 14, provisioning through July 1, disputed call July 8, audit July 18, termination July 22, and Meridian work continued through July 25.

Examination concluded

COUNSEL FOR MERIDIAN: One clarification. Does Asterglen contend Meridian decided whether Copper Kestrel would receive a cure period?

THE WITNESS: No. Asterglen made the July 22 decision. Asterglen contends Meridian contributed to the underlying expanded activity, but Meridian did not send Asterglen's termination demand.

The witness reserved the right to review the transcript for transcription errors without materially changing sworn answers. The deposition concluded at 4:18 p.m.